कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110 066.
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi – 110 066.

No: LC-2(5016)/Legal/Circulars 806 **Dated: 17.09.2020**

17 SEP 2020

To

All Addl. CPFCs (Zones)
All RPFC's (OIC's)

Subject: Instructions regarding defending matters relating to constitutional/legal validity of statutory provisions/executive directions.

Madam/Sir,

It is seen that challenges to constitutional or legal validity of statutory provisions of the Act/Schemes, Gazette Notifications or policy decisions of EPFO in various constitutional courts are dealt with and defended by concerned Regional Offices. Many such cases, it has been noticed, are defended without seeking instructions from Head Office.

EPFO and Union of India are necessary parties in cases where statutory provisions or notifications are challenged for their constitutional or legal validity. Similarly, cases involving challenge to any policy decision or executive direction of EPFO would have the Headquarters as a necessary party. The defense of such cases by the respective RPFCs, even when Headquarters/UoI are not arrayed as parties, is improper and legally unsustainable. The current practice adopted by Regional Offices also leads to inadequate defense of the challenge and sometimes leads to irremediable situations.

It is therefore directed that in cases where policy decisions of EPFO, statutory provisions or any Gazette Notification under the Act or any of the Scheme are challenged, the concerned Regional Office should refer the matter to Legal Division, Head Office for instructions. No submission on merits of the matter should be made in such cases without approval of the headquarters.

(This issues with the approval of CPFC)

Yours faithfully

Amit 17.09.2020

[Amit Vashist]

Regional P.F. Commissioner-I (Legal)

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1. RPFC (NDC) for web upload.